

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ARESCIA YOHANA MEJIA LOPEZ,

Petitioner

VS.

MAYNOR ENRIQUE MIKERY CASTRO,

Respondent

) Case Number: FPT-25-378741

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Arescia Yohana Meija Lopez (Mother) and Respondent Maynor Enrique Mikery Castro (Father) have two minor children together, Jeremy (DOB 4/27/2019, age 7) and Valerie (DOB 1/6/2023, age 3).
- 2) On 12/3/2025, Mother filed a request for sole legal custody and sole physical custody with no parenting time for Father; she believes the children are not safe with him. She states there is a 10-year criminal protective order (CPO) against Father, who is "a very violent man and an alcoholic" who continues to contact her from blocked numbers and screams insults at her and does not ask about the children when she accidentally picks up the calls.
- 3) Father filed a response on 12/31/2025 in which he denies that he drinks alcohol. He states he completed an alcohol abuse program and a 52-week domestic violence program. He states he is now married and has a stepchild and he has moved on. He states he is a "completely . . . fit and caring parent who [is] simply seeking to play his normal role as a father in the lives of his children."

1 4) At the 3/5/2026 hearing, the Court ordered that Mother shall have sole legal and physical custody
2 of the children and that Father shall have parenting time every Saturday from 12pm to 3pm, with
3 the paternal grandmother conducting the exchanges at Mother's home, curbside. The Court set a
4 review hearing for 6/4/2026 and ordered both parties to file and serve update declarations at least
5 10 days before the review hearing.

6 5) Neither party has filed an update declaration.

7 **B. Findings and Orders**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 children is the United States.

12 2) The Court maintains the current custody and parenting time orders. Either party may file a new
13 request for order if they wish to make changes to the current order.

14 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SERGIO GUTIERREZ BARAJAS,

Petitioner

VS.

SAFYANY SOP,

Respondent

) Case Number: FMS-23-387473

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CONDUCT ORDERS, SANCTIONS, REDUCE ROFR, MUTUAL WRITTEN CONSENT

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Sergio Gutierrez Barajas (Father) and Safyany Sop (Mother) have one minor child together, Djamilah (DOB 9/21/2021, age 4). The parties have joint legal and joint physical custody of Djamilah. Father has in person parenting time and phone and video calls as set forth in a Findings and Order After Hearing filed 5/7/2025. His in person parenting time includes a holiday and visitation schedule as well as the following regular, alternating schedule: Week A, from Wednesday at 9:15am to Saturday at 9:15am; and Week B, from Wednesday at 12:30pm to Sunday at 5pm.
- 2) On 3/9/2026, Mother filed a request to change the parenting time schedule starting this fall, when Djamilah starts T-K. She believes it would be in Djamila's best interest to be with Mother during

1 the school week and with Father on alternating weekends and every Wednesday for dinner, and
2 for the parties to revert back to the current Week A/Week B schedule for the summer months. She
3 states the current schedule will not work because Father is not committed to Djamilah's school
4 attendance. Mother also sets forth various other concerns she has regarding Father's parenting
5 time and states she is the parent better able to care for Djamilah's needs. She requests various
6 other orders including conduct and communication orders.

7 3) Father has filed a responsive declaration in which he seeks to keep the current schedule. He states
8 that the attendance records show he has generally dropped off and picked up Djamilah on time,
9 "with only a few instances of early pickup." He states he will be moving to a place in Oakland
10 that is only two blocks from Djamilah's TK school and that he is committed to ensuring her
11 regular attendance. He states Djamilah is thriving with the current schedule. Father agrees with
12 some of Mother's requests for conduct and communication orders (e.g., nondisparagement,
13 Talking Parents app, although he prefers the free version of any app) and is not in agreement with
14 others (e.g., 2-hour right of first refusal).

15 4) Both parties have filed supplemental declarations, which the Court has reviewed.

16 **B. Findings and Orders**

17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
18 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
19 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 child is the United States.

21 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/4/2026 in**
22 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KIANNA R BERRY,

Petitioner

VS.

CALVIN LINCOLN,

Respondent

) Case Number: FLD-20-396745

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 10AM on 6/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KARA CRONK,

Petitioner

VS.

CHRISTOPHER C. CRONK,

Respondent

) Case Number: FDI-19-791545

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION AND ORDERS
REGARDING SOBERLINK AND DRIVING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA BRIGNOLO,

Petitioner

VS.

SIMON THORNEYCROFT,

Respondent

) Case Number: FDI-22-796491

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ORDER SHORTENING TIME; IMMEDIATE LISTING AND SALE OF
PLEASANT HILL REAL PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jessica Brignolo (Mother) and Respondent Simon Thorneycroft (Father) married on 6/12/2003. The parties agree their date of separation was in 2022 (but disagree as to the exact date), for a marriage of at least 18 years. The parties have one minor child, Siena (DOB: 9/26/2008, age 17). Mother is represented by attorney David Blacker. Father is represented by attorney Randy Rabidoux.
- 2) After the 12/11/2025 hearing, per the Findings and Order After Hearing filed 12/23/2025, the Court awarded Mother above-guideline temporary spousal support of \$8,500 per month effective 12/1/2025 after considering Mother's needs (including her monthly mortgage payment of \$3,593 and property tax payment of \$1,297) and Father's ability to pay. The Court noted this amount was less than the \$10,000 per month in support that Mother had requested given that the parties have been separated for over three years, the Court's finding that Mother's earning capacity is not \$0, and the fact that the minor child is in Father's care 100% of the time. The Court set a review

1 hearing date on 4/21/2026 (which was later continued to 5/7/2026 by agreement of the parties)
2 “to review child and temporary spousal and to review Father’s request for a Gavron warning.”

3 The Court also noted, “Given what has been pled to date, the Court intends to impute full-time
4 California minimum wage income of \$16.90 per hour to Mother at the next hearing date...”

5 3) At the 5/7/2026 hearing (per the Findings and Order After Hearing filed 5/22/2026), the Court
6 adopted its Tentative Ruling without objection and imputed full-time minimum wage income to
7 Mother. The Court ordered Mother to pay Father effective 5/15/2026 guideline child support of
8 \$469 per month and ordered Father to pay Mother above guideline temporary spousal support of
9 \$6,969 per month, for net support owing to Mother of \$6,500 per month.

10 4) The Court notes that the parties attended a Mandatory Settlement Conference on 4/3/2026 and
11 two Judicial Settlement Conferences before Judge Luna on 4/27/2026 and 5/4/2026 and were
12 unable to resolve the case.

13 5) The parties appeared for a Trial Setting Conference before Judge Chan on 6/1/2026. The matter is
14 now set for a 5-day trial spanning 12/14/2026 – 12/18/2026 in Dept. 405 before Judge Wiley.

15 6) Now on for hearing is Father’s ex parte Request for Order filed 5/8/2026 asking the Court to list
16 and sell the Pleasant Hill property in Sebastopol (where Mother resides) and to hear this request
17 on shortened time. Father states that the parties do not have liquid assets other than retirement
18 accounts, although Father has already borrowed the maximum amount from his 401(k). Father
19 states that the parties’ assets are tied up in the home equity of the Pleasant Hill property in
20 Sebastopol (where Mother resides) and the Enos property also in Sebastopol (where Father and
21 the minor child reside). Father states the Pleasant Hill property is undisputedly community
22 property. Father states that his business Perspective Branding has not generated enough revenue
23 to support both parties’ households as well as professional fees. Father states that Mother’s father
24 pays for Mother’s attorney’s fees and although Mother has produced promissory notes for these
25 payments, these were created “after the fact, to make the payments appear to be loans instead of
26 gifts or advances.” Father states he has no similar third party source of financial support. Father’s
27 attorney states Father owes over \$84,000 in outstanding fees and costs, trial preparation must
28 begin, and Father’s attorney (and other professionals working on this case) will need to withdraw
29 unless Father can replenish his retainer. Father states that the Pleasant Hill property needs to be

1 sold so that cash can be made available for reasonable attorneys' fees and professional fees to
2 prepare this case for trial.

3 7) On 5/8/2026, Mother filed a Responsive Declaration stating that there is no emergency and no
4 basis for Father to have filed an ex parte request. Mother states Father's business is profitable and
5 his expenses are unnecessarily high. Mother states the parties should explore short-term
6 borrowing against retirement assets (and states that Father presented no evidence to support his
7 assertion that he has borrowed the maximum amount from his 401(k)) to fund litigation rather
8 than a forced sale of Mother's domicile. Mother notes that Father did not submit evidence that he
9 applied for and / or was denied a home equity line of credit against the Enos property where he
10 resides. Regarding Mother's source of attorney fee payments, Mother states: "My father's
11 contributions have been documented, in part through promissory notes, and to the extent those
12 contributions constitute loans, they are obligations of mine, not unlimited resources. Further,
13 Simon presents no competent evidence that these promissory notes are not legitimate
14 obligations." Mother states, "A pendente lite request to order the sale of any community property
15 asset, let alone one of the more significant assets, is extraordinary relief. When that asset is the
16 home of one of the parties, the bar is all the higher. It may be that there is insufficient income to
17 enable both these parties to remain in their homes. Perhaps both these homes will need to be
18 sold..."

19 8) On 5/8/2026, per the Temporary Emergency Ex Parte Orders, Judge Wiley granted Father's
20 request for an Order Shortening Time and set this matter for hearing on 6/4/2026.

21 9) On 5/20/2026, Mother filed a second Responsive Declaration which restates many of the
22 arguments set forth in her 5/8/2026 Responsive Declaration and new arguments, including that
23 the Enos property has more equity than the Pleasant Hill property, that Father's appraisal
24 overestimates the value of Mother's home (and does not take into account the fact hat a redwood
25 tree fell on the Pleasant Hill roof this week), and that rents for comparable homes exceed the
26 carrying costs of Pleasant Hill. Mother states that if she is forced out of her home, she will be
27 compelled to seek additional support which she expects Father to resist vigorously. Mother states
28 that Father's request is "an abusive tactic designed to disturb my peace, create more anxiety and
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1 financial uncertainty, to make me think that not only do I need to get ready for trial, but I need to
2 worry about where I'm going to live."

3 10) On 5/20/2026, Mother filed a Points and Authorities arguing that Father failed to make a showing
4 of good cause under Family Code section 2108. Mother argues that Father's request is actually an
5 attorney's fees request without proper support. Mother notes that a Family Law Attorney's Real
6 Property Lien (FLARPL) is a less restrictive alternative, citing Family Code section 2033(a)
7 which states: "Either party may encumber the party's interest in community real property to pay
8 reasonable attorney's fees in order to retain or maintain legal counsel in a proceeding for
9 dissolution of marriage, for nullity of marriage, or for legal separation of the parties. This
10 encumbrance shall be known as a 'family law attorney's real property lien' and attaches only to
11 the encumbering party's interest in the community real property."

12 11) On 5/20/2026, Mother's attorney filed a declaration wherein he states that the first quarter general
13 ledgers for the community property business Perspective Business which Father runs reflects:
14 "spending consistent with Simon's previous personal spending through Perspective."

15 12) On 5/29/2026, Father filed a Reply Declaration. Father states that Mother has presented no
16 evidence of alternative sources of funding for Father, including "no evidence showing that
17 additional retirement borrowing is available, can be obtained without delay, or would be a
18 prudent or adequate way to fund this case through trial." Father's attorney states that Father now
19 owes his firm more than \$100,000 in outstanding fees and costs."

20 13) On 5/29/2026, Father filed a Memorandum of Points and Authorities arguing, among other points
21 made, that he is not relying exclusively on Family Code section 2108 and he seeks an interim
22 order under "the Court's broader authority to preserve and manage community assets and to
23 ensure parity of access to counsel under sections 2030, 2032, 2040, 2553, and 290." Father's
24 attorney argues, "Section 2040, subdivision (a)(2), expressly authorizes the use of community
25 property to pay reasonable attorneys' fees pending trial, and section 2553 authorizes the Court to
26 make any orders necessary to carry out the property-division statutes. Simon's request falls
27 squarely within those statutes because it converts illiquid community equity into preserved
28 proceeds that can be administered fairly and later accounted for at trial."

1 **B. Findings and Order**

- 2 1) Family Code section 2108 states, "At any time during the proceeding, the court has the authority,
3 on application of a party and for good cause, to order the liquidation of community or quasi-
4 community assets so as to avoid unreasonable market or investment risks, given the relative
5 nature, scope, and extent of the community estate."
- 6 2) The Court finds that Father's asserted need for funds to pay attorney's fees does not constitute an
7 "unreasonable market or investment risk" within the meaning of Family Code section 2108.
- 8 3) The Court is not persuaded that the other authorities cited by Father authorize the compelled sale
9 of a community property residence (particularly one occupied by the other party) pending trial to
10 permit Father to obtain cash to pay attorney's fees.
- 11 4) Father's request to compel the sale of the Pleasant Hill residence prior to trial is denied.
- 12 5) Father's attorney shall prepare the Findings and Order After Hearing.
- 13 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JISUN-LEE RACHEL KIM,	)	Case Number: FDI-23-798921
Petitioner	)	Hearing Date: June 4, 2026
VS.	)	Hearing Time: 9:00 AM
RAYMOND CHRISTIAN KIM,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS, ;
MOTION TO COMPEL FURTHER DISCOVERY RESPONSE, SANTION AND AWARD 100%
OMITTED ASSETS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jisun-Lee Rachel Kim (Wife) and Respondent Raymond Christian Kim (Husband) married on 10/6/2001. Per the Petition for Dissolution filed 11/28/2023, the parties separated on 9/1/2023, for a marriage of 21 years and 10 months. The parties do not have minor children. Wife is represented by attorney Christie Lee.
- 2) Per the Proof of Service of Summons, Husband was personally served with the Petition for Dissolution and Summons on 1/11/2024. Husband has not filed a Response to the Petition. Husband has also not filed any pleadings in this matter or appeared at any prior hearings to date. However, based on the statements made in her most recent moving papers, Husband has been in sporadic communication with Wife’s attorney, although Wife’s attorney states that Husband’s conduct in this litigation has been “characterized by absolute obstruction and total disregard for his fiduciary duties.”

1 3) At the prior 3/5/2024 hearing (per the Findings and Order After Hearing filed 5/21/2024), Judge
2 Tong adjudicated Wife's request for temporary spousal support and ordered Husband to pay Wife
3 \$3,474 per month in temporary spousal support effective 12/20/2023 based on Husband's salary
4 of \$16,000 per month (based on Wife's assertions that a prior W2 for Husband stated this
5 amount) and Wife's self-employment income of \$2,500 per month. The Court also ordered
6 Husband to pay Wife spousal support arrears of \$8,181 for the period 12/20/2023 – 2/28/2024, at
7 a rate of \$1,363.0 per month for 6 months.

8 4) Now on for hearing is Wife's Request for Order filed 3/27/2026. Wife states that Husband is a
9 "high-level banking executive with decades of experience at Wells Fargo, US Bank, California
10 Bank & Trust, and BMO." Wife states that Husband failed to provide a Schedule of Assets and
11 Debts and has concealed a \$240,000 investment portfolio and his current BMO executive
12 compensation records. Wife also states that Husband provided deficient responses to her Family
13 Law Form Interrogatories, Set One and Request for Production of Documents, Set One. Wife
14 further states that Husband failed to respond to a settlement proposal sent by her attorney on
15 10/22/2025. Wife asks the Court to:

- 16 a. Compel further responses to Family Law Form Interrogatories, Set One and Request for
17 Production of Documents, Set One
 - 18 b. Compel Husband to produce a completed Schedule of Assets and Debts (FL-142)
 - 19 c. Award Wife 100% of undisclosed community stocks / investments under Family Code
20 section 1101(h)
 - 21 d. Order Husband to pay \$22,735 in support arrears
 - 22 e. Order Husband to pay \$12,400 in attorney's fees sanctions under Family Code section
23 271 for fees incurred to engage in informal discovery efforts, draft settlement proposals,
24 communicate with Husband, draft formal discovery requests, draft meet and confer
25 letters, research and draft subpoenas (which were unproductive because Wife lacks the
26 specific account numbers for various accounts), make attempts to serve Husband who
27 Wife states evaded service, and draft the instant motion.
- 28 5) Per the Proof of Service filed 5/7/2026, Wife's Request for Order was personally served on
29 Husband on 5/3/2026.

6) Husband did not file a Responsive Declaration.

7) The Court notes there is a future hearing date set for 6/18/2026 in Dept. 404 on Wife's Order to Show Cause Re: Contempt filed 4/10/2026 wherein Wife alleges Husband failed to pay support arrears for the period 12/20/2023 – 2/28/2024 and failed to pay support for the period 10/5/2025 – 3/15/2026.

B. Findings and Order

1) The hearing on Wife's request to compel further responses to Family Law Form Interrogatories, Set One and Request for Production of Documents, Set One and Wife's request for sanctions related to her motion to compel is hereby continued to the discovery calendar on **Friday, 9/4/2026 at 1:30 PM in Dept. 405A.**

2) The Court finds, based on Wife's unrefuted assertions, that Husband owes Wife \$22,735 in total support arrears for the periods 12/20/2023 – 2/28/2024 and 10/5/2025 – 3/15/2026. Husband shall pay this amount to Wife in 6 installments of \$3,789 due by the 15th of each month commencing 6/15/2026. These payments shall be in addition to monthly temporary spousal support owed by Husband as set forth in the Findings and Order After Hearing filed 5/21/2024.

3) No later than 6/30/2026, Husband shall complete and serve on Wife's attorney a completed Schedule of Assets and Debts (FL-142), along with all required attached documents.

4) The Court's jurisdiction to adjudicate Wife's request that the Court award her 100% of undisclosed community stocks / investments under Family Code section 1101(h) is reserved for trial / final Judgment.

5) The Court finds good cause to award to Wife Family Code section 271 attorney's fees in the amount of \$2,600 for fees incurred for her attorney to locate Husband for service (1.5 hours x \$400 / hour) and for some of the fees incurred for Wife's attorney to draft this motion to pursue Wife's claims regarding support arrears, Husband's Schedule of Assets and Debts, and attorney's fees sanctions (5 hours x \$400 / hour). Husband shall pay to Wife the \$2,600 awarded here from his separate property no later than 7/15/2026.

6) The Court's jurisdiction to award additional attorney's fees sanctions related to Wife's motion to compel is reserved and will be addressed at the discovery hearing in Dept. 405A.

1 7) All other requests for attorney's fees sanctions by Wife set forth in the instant Request for Order
2 are denied without prejudice to Wife's ability to later file a need-based attorney's fee request.

3 8) Wife's attorney shall prepare the Findings and Order After Hearing.

4 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTHA ALEJANDRA BAYARDO,

Petitioner

VS.

CARLOS GERARDO BAYARDO,

Respondent

) Case Number: FDI-24-799607

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHILD CUSTODY, VISITATION, SUPPORT, BIFURCATION AND
TERMINATION OF STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Martha Bayardo (Mother) and Respondent Carlos Bayardo (Father) married on
6/6/2012 and separated on 6/7/2018, for a marriage of 6 years. The parties have one minor child,
Roberta (DOB: 12/2/2013, age 12). Mother is represented in limited scope by attorney Hector
Chinchilla. Father is self-represented.
- 2) On 2/3/2026, Mother filed the instant Request for Order asking the Court to award her sole legal
and physical custody, award Mother guideline child support, issue Mother's proposed holiday
schedule, and bifurcate and terminate the parties' marital status.
- 3) On 2/20/2026, the parties appeared for a Mandatory Settlement Conference and reached several
agreements.
- 4) On 4/7/2026, the parties appeared for a hearing on Mother's 2/3/2026 Request for Order. The
Court order the parties to attend mediation and set the matter for a continued hearing on 6/4/2026.

- 1 5) On 4/24/2026, a Judgment was entered which incorporates the parties' Marital Settlement
2 Agreement (MSA). The MSA provides in relevant part that legal and primary physical custody
3 shall be granted to Mother with a visitation schedule for Father. The MSA also provides, "As
4 regards child support, the parties have since separation, addressed this issue through an informal
5 private agreement. Unless and until a further order from the court the parties have agreed to
6 maintain the status quo." The MSA also terminates the Court's jurisdiction to award spousal
7 support to either party.
- 8 6) On 5/11/2026, a Child Custody and Visitation Stipulation and Order was entered which states that
9 Mother shall have sole legal custody and the parties shall share joint physical custody. The
10 Stipulation and Order outlines a regular and holiday visitation schedule.
- 11 7) The remaining issue set to be heard at the 6/4/2026 hearing is Mother's request for child support.
- 12 8) On 5/26/2026, Mother filed an Income and Expense Declaration. Mother states she is 54 years
13 old and has a Masters Degree in Marketing. Mother works 40 hours per week for her pet care
14 business. Mother attached a 2025 Profit and Loss Statement which shows that she earned \$88,947
15 in gross income in 2025 and paid \$48,904 in expenses (not including depreciation), for net self-
16 employment income of \$40,043, which averages out to \$3,337 per month. Mother estimates that
17 Father earns \$8,000 per month.
- 18 9) On 6/1/2026, Mother filed a declaration to which a proposed XSpouse calculation is attached,
19 which shows \$630 per month in guideline child support payable by Father based on Father's
20 earning \$6,500 per month in self-employment income and Mother earning \$1,750 per month in self-
21 employment income.
- 22 10) Per the Proof of Service filed 6/1/2026, Mother's Income and Expense Declaration and her
23 declaration filed 6/1/2026 were mailed and emailed to Father on 5/27/2026.
- 24 11) Father did not file any pleadings in response to Mother's 6/1/2026 declaration and he has not filed
25 an Income and Expense Declaration in this matter since December 2025.

26 **B. Findings and Order**

- 27 1) The Court does not have sufficient information to make a guideline child support calculation
28 given that Mother's most recent pleadings provide two different income figures for Father (with
29

no documentary support) and there is no current Income and Expense Declaration on file for Father.

- 2) The hearing on Mother's request for child support is hereby continued to **Thursday, 8/27/2026 at 9:00 AM in Dept. 404.**
- 3) At least 20 calendar days prior to the next hearing date, Father shall file and serve a fully completed Income and Expense Declaration. Father shall include as an attachment paystubs for the immediately preceding two months, a year-to-date Profit and Loss Statement or Schedule C, and a Profit and Loss Statement or Schedule C for 2025.
- 4) If Father fails to file an Income and Expense Declaration prior to the next hearing date, at least 10 calendar days prior to the next hearing date, Mother shall file a declaration to which she attaches documentary proof of her claims regarding Father's income.
- 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NICHOLAS A WAGES,

Petitioner

VS.

AYU H WAGES,

Respondent

) Case Number: FDI-25-801579

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: FAMILY CODE 2107 TO SERVE FL-142, FL-150, FL-140

TENTATIVE RULING

As there is no evidence in the record that Petitioner was served with a copy of the Tentative Ruling Instructions, as required by San Francisco Local Rule 11.7(D)(3)(A), the parties are ordered to appear. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, absent good cause shown, the Court intends to adopt the following findings and orders.

A. Procedural History

- 1) Petitioner Nicholas Wages and Respondent Ayu Wages married on 7/14/2019 and separated after approximately 5 years of marriage (exact date of separation in dispute). The parties do not have minor children.
- 2) On for hearing is Respondent's Request for Order filed 4/10/2026 asking the Court to compel Petitioner to serve his Preliminary Declaration of Disclosure. Respondent also seeks sanctions under Family Code section 2107.
- 3) Per the Proof of Service filed 4/23/2026, Respondent's Request for Order was mailed to Petitioner on 4/13/2026.

1 4) Petitioner did not file a Responsive Declaration. However, on 5/29/2026, Petitioner filed a
2 Declaration Regarding Service of Preliminary Declaration of Disclosure as well as a Proof of
3 Service on 5/29/2026 stating that his financial disclosure documents were personally served on
4 Respondent on 5/6/2026.

5 5) Respondent did not file a Reply Declaration.

6 **B. Findings and Order**

7 1) As it appears Petitioner has now served his Preliminary Declaration of Disclosure, the Court finds
8 that Respondent's 4/10/2026 Request for Order is moot.

9 2) The Court also denies Respondent's request for sanctions because Respondent did not specify an
10 amount and did not state whether Respondent first informally requested Petitioner to prepare and
11 serve his Preliminary Declaration of Disclosure, as required by Family Code section 2107(a).

12 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELISE TRAN,
Petitioner

VS.

PETER NHO,
Respondent

) Case Number: FDV-26-818905
)
) Hearing Date: June 4, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 404
)
) Presiding: AI MORI
)

REQUEST FOR ORDER ATTORNEY FEES AND COSTS, AWARDED TO PREVAILING PARTY
IN DVRO PROCEEDINGS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) On 1/21/2026, Petitioner Elise Tran (Mother) filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent Peter Nho (Father). Mother is self-represented. Father is represented by attorney Amrit Kullar.
- 2) At the prior hearing on 3/18/2026, the Court denied Mother's Request for DVRO.
- 3) Now on for hearing is Father's Request for Order filed 3/26/2026 asking the Court to order Mother to pay him \$8,000 in attorney's fees and costs that he incurred to defend against Mother's Request for DVRO under Family Code section 6344.
- 4) On 3/19/2026, Father's attorney filed a declaration stating that Father has incurred \$6,251.87 in attorney's fees and costs in defending against Mother's Request for DVRO (and these fees do not include additional fees and costs incurred to address custody and child support).
- 5) On 3/30/2026, Father filed an Income and Expense Declaration.

1 6) On 4/17/2026, Father's attorney filed a declaration stating that Mother owns a nail business and a
2 summary of Mother's PayPal transaction data shows that Mother received in excess of \$170,000
3 between 2013 and 2026 and Venmo records show Mother received \$42,945 between 2024 and
4 2026.

5 7) On 4/27/2026, Father filed a Supplemental Declaration stating that Mother's Bank of America
6 statements show that Mother's accounts receive consistent monthly deposits between \$7,000 to
7 \$8,000 per month.

8 8) On 5/27/2026, Mother filed a Responsive Declaration and an Income and Expense Declaration.
9 Mother states that her Request for DVRO was not frivolous, retaliatory, or made in bad faith.
10 Mother states she cannot afford the fees requested. Mother states that her nail business earns
11 \$2,000 in average monthly income, with \$1,200 per month in average monthly expenses, for total
12 net average income of \$800 per month. Mother attached documentation which appears to show
13 that her partner and godmother provide her with financial assistance. Mother further states she
14 has serious health conditions that severely limit her ability to maintain a stable job. Mother does
15 not specify what health conditions she suffers from, but attaches various records showing a
16 significant number of contacts with medical providers over the past couple of years as well as an
17 extensive list of medications prescribed to her.

18 9) On 6/1/2026, Father filed a Reply Declaration stating that Mother did not timely serve her
19 responsive pleadings and exposes their daughter Kayleigh's Social Security Number in several
20 places. Father asks the Court to seal Mother's Responsive Declaration. Father states that Mother's
21 responsive pleadings are inconsistent, contradicted by documentary evidence, and raise
22 significant concerns regarding the accuracy of the information provided to the Court.

23 **B. Findings and Order**

24 1) Although it appears Mother attempted to redact her social security number and their daughter's
25 social security number from Mother's 2025 tax returns attached to Mother's Income and Expense
26 Declaration filed 5/27/2026, the Court agrees with Father that there remain several places
27 throughout the tax return where Mother's and their daughter's social security number has not
28 been redacted. The Court hereby strikes all pages of Mother's 2025 tax returns from Mother's
29 Income and Expense Declaration filed 5/27/2026.

- 1 2) Family Code section 6344(b) provides, “After notice and a hearing, the court, upon request, may
2 issue an order for the payment of attorney’s fees and costs for a prevailing respondent only if the
3 respondent establishes by a preponderance of the evidence that the petition or request is frivolous
4 or solely intended to abuse, intimidate, or cause unnecessary delay.”
- 5 3) The Court does not find that Father has established by a preponderance of the evidence that
6 Mother’s Request for DVRO was frivolous or solely intended to abuse, intimidate, or cause
7 unnecessary delay.
8 Father’s request for attorney’s fees under Family Code section 6344 is denied.
- 9 4) Father’s attorney shall prepare the Findings and Order After Hearing.
- 10 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
11 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
12 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
13 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
14 proposed order after hearing directly to the court. Failure to submit the order after hearing within
15 10 days may allow the other party to prepare a proposed order and submit it to the court in
16 accordance with CA Rules of Court, Rule 5.125(d).
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